

5	Newman – Trust; 30-2024-01372473	
6	Anderson/Callahan – Trust; 30-2024-01389721	
7	Nguyen – Conservatorship; 30-2023-01345985	Motion to Modify Order Petitioner Ngoc Hong Nguyen’s Motion to Modify April 29, 2026 Order on Motion on Independent Geriatric Evaluation (ROA 508) is DENIED. Pursuant Code of Civil Procedure sections 128(a)(8) and 1008(a), Ngoc Hong Nguyen (Ngoc) asks the court to modify its April 29, 2026 order (ROA 492) on Ngoc’s motion for an independent geriatric evaluation (ROA 419). Section 1008 reads, in pertinent parts: “(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part . . . any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and <i>based upon new or different facts, circumstances, or law</i>, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. . . .

“(e) This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court *unless made according to this section.*”

(Emphasis added.)

The requirement of “new or different facts, circumstances or law” is jurisdictional. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [“a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law’”].) Further, a party seeking reconsideration pursuant to Section 1008 must explain why the allegedly new or different facts, circumstances or law were not previously presented. (*Evan Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it’ at the original hearing.” (*Craddock v. Hilton Domestic Operating Co, Inc.* (2025) 112 Cal.App.5th 284, 304.)

Ngoc’s motion does not present “new or different facts, circumstances, or law” within the meaning of section 1008. Accordingly, the court is without jurisdiction to consider the motion for reconsideration under Section 1008.

However, a court may always reconsider its own ruling, even at a party’s suggestion outside of Section 1008. As explained in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1105: “We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (although any such communication should never be ex

		parte). We agree that it should not matter whether the judge has an unprovoked flash of understanding in the middle of the night or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief.” Under that authority, the court reconsiders its prior ruling, taking into account the arguments of the parties on the motion for reconsideration (which was fully briefed). Having considered those arguments, the court denies the request to modify the order. The order does not specify the amount Ngoc must pay for the examination, nor does it deny the opportunity to use insurance to pay for all or a portion of the examination. The order requires only that Ngoc pay whatever amount must be paid, subject to reapportionment. Similarly, the court did not and will not direct the Health Assessment Program for Seniors (HAPS) at University of California, Irvine as to who should conduct the examination or how it should be conducted. That is and should be left to HAPS, the entity with knowledge and experience in the field. The motion is DENIED. The original order stands. Opposing party is directed to give notice.
8	Williams – Trust; 30-2025-01533843	MOTION TO SET ASIDE Wendy Williams’ Motion to Set Aside/Vacate (ROA 63) is DENIED. By her motion, Wendy Williams seeks an order vacating “any orders entered without my notice or participation” on the ground she did not receive notice of the proceeding. The proceeding was initiated on December 12, 2025 when Petitioner Anne Williams filed a petition regarding the Albert James Williams and Anne Williams Living Trust dated August 26, 2021 (Trust). The petition was set for hearing on May 27, 2025.